

HOUSE BILL No. 1091

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-44.1-3-1.

Synopsis: Resisting law enforcement. Resolves a conflict between HEA 1014-2025 and HEA 1637-2025.

Effective: July 1, 2026.

DeLaney

January 5, 2026, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1091

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 35-44.1-3-1, AS AMENDED BY P.L.218-2025,
2 SECTION 19, AND AS AMENDED BY P.L.238-2025, SECTION 88,
3 IS CORRECTED AND AMENDED TO READ AS FOLLOWS
4 [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) A person who knowingly or
5 intentionally:

6 (1) forcibly resists, obstructs, or interferes with a law enforcement
7 officer or a person assisting the officer while the officer is
8 lawfully engaged in the execution of the officer's duties;

9 (2) forcibly resists, obstructs, or interferes with the authorized
10 service or execution of a civil or criminal process or order of a
11 court; or

12 (3) flees from a law enforcement officer after the officer has, by
13 visible or audible means, including operation of the law
14 enforcement officer's siren or emergency lights, identified himself
15 or herself and ordered the person to stop;

16 commits resisting law enforcement, a Class A misdemeanor, except as
17 provided in subsection (c).



(b) A person who, having been denied entry by a firefighter, an emergency medical services provider, or a law enforcement officer, knowingly or intentionally enters an area that is marked off with barrier tape or other physical barriers, commits interfering with public safety, a Class B misdemeanor, except as provided in subsection (c) or ~~(j)~~.

(c) The offense under subsection (a) or (b) is a:

(1) Level 6 felony if ~~(4)~~ the person uses a vehicle to commit the offense; ~~or~~

~~(B)~~ (2) Level 5 felony if: ~~while committing the offense, the person:~~

~~(i)~~ (A) while committing the offense, the person draws or uses a deadly weapon;

~~(ii)~~ (B) while committing the offense, the person inflicts moderate bodily injury on or otherwise causes moderate bodily injury to another person; or

~~(iii)~~ (C) while committing the offense, the person operates a vehicle in a manner that creates a substantial risk of bodily injury to another person;

~~(2)~~ (3) Level 4 felony if:

(A) while committing the offense, the person operates a vehicle in a manner that causes serious bodily injury to another person; or

(B) the person uses a vehicle to commit the offense and the person has a prior unrelated conviction under this section involving the use of a vehicle in the commission of the offense;

~~(3)~~ (4) Level 3 felony if, while committing the offense, the person operates a vehicle in a manner that causes the death or catastrophic injury of another person; and

~~(4)~~ (5) Level 2 felony if, while committing any offense described in subsection (a), the person operates a vehicle in a manner that causes the death or catastrophic injury of a firefighter, an emergency medical services provider, or a law enforcement officer while the firefighter, emergency medical services provider, or law enforcement officer is engaged in the firefighter's, emergency medical services provider's, or officer's official duties.

(d) The offense under subsection (a) is a Level 6 felony if, while committing an offense under:

(1) subsection (a)(1) or (a)(2), the person:

(A) creates a substantial risk of bodily injury to the person or another person; and

(B) has two (2) or more prior unrelated convictions under subsection (a); or



(2) subsection (a)(3), the person has two (2) or more prior unrelated convictions under subsection (a).

(e) If a person uses a vehicle to commit a felony offense under subsection ~~(c)(1)(B), (c)(2), (c)(3), or (c)(4)~~, (c), as part of the criminal penalty imposed for the offense, the court shall impose a minimum executed sentence of at least:

(1) thirty (30) days, if the person does not have a prior unrelated conviction under this section;

(2) one hundred eighty (180) days, if the person has one (1) prior unrelated conviction under this section; or

(3) one (1) year, if the person has two (2) or more prior unrelated convictions under this section.

(f) Notwithstanding IC 35-50-2-2.2 and IC 35-50-3-1, the mandatory minimum sentence imposed under subsection (e) may not be suspended.

(g) If a person is convicted of an offense involving the use of a motor vehicle under:

(1) ~~subsection (c)(1)(A)~~, subsection (c)(1), if the person exceeded the speed limit by at least twenty (20) miles per hour while committing the offense;

(2) subsection (c)(2); ~~or~~

(3) subsection (c)(3);

(4) ~~subsection (c)(4)~~; or

(5) subsection (c)(5);

the court may notify the bureau of motor vehicles to suspend or revoke the person's driver's license in accordance with IC 9-30-4-6.1(b) for the period described in IC 9-30-4-6.1(d)(1) or IC 9-30-4-6.1(d)(2). The court shall inform the bureau whether the person has been sentenced to a term of incarceration. At the time of conviction, the court may obtain the person's current driver's license and return the license to the bureau of motor vehicles.

~~(h) A person may not be charged or convicted of a crime under subsection (a)(3) if the law enforcement officer is a school resource officer acting in the officer's capacity as a school resource officer.~~

~~(i) (h)~~ (h) A person who commits an offense described in subsection (c) commits a separate offense for each person whose bodily injury, serious bodily injury, catastrophic injury, or death is caused by a violation of subsection (c).

~~(j) (i)~~ (i) A court may order terms of imprisonment imposed on a person convicted of more than one (1) offense described in subsection (c) to run consecutively. Consecutive terms of imprisonment imposed under this subsection are not subject to the sentencing restrictions set



1 forth in IC 35-50-1-2(c) through IC 35-50-1-2(d).
2 ~~(k)~~ (j) As used in this subsection, "family member" means a child,
3 grandchild, parent, grandparent, or spouse of the person. It is a defense
4 to a prosecution under subsection (b) that the person reasonably
5 believed that the person's family member:
6 (1) was in the marked off area; and
7 (2) had suffered bodily injury or was at risk of suffering bodily
8 injury;
9 if the person is not charged as a defendant in connection with the
10 offense, if applicable, that caused the area to be secured by barrier tape
11 or other physical barriers.

